The following dedication and covenant language to be added to the CSM:

TI Investors of Lakeveiw Nitto Parcel LLC (hereinafter referred to as the "Owner"), hereby dedicates to the Village of Pleasant Prairie (the "Village") and other parties as identified herein, the following fee simple interests and easements, in the locations shown on this Certified Survey Map and provides for certain restrictive covenants benefiting the Village and other parties as provided herein.

The term "Lot Owner" means the Owner while holding ownership of applicable property and, after sale by the Owner, the owner or owners of individual lots within the property included in the CSM (including any Outlots, if applicable), their successors, assigns and successors-in-title in their capacity as Lot Owners. All restrictive covenants and dedication and easement conditions and requirements herein shall run with the land, shall be binding upon all Lot Owners, and shall benefit and be enforceable by the Village and other parties as provided herein. As used in herein, the term "Village" includes the Village and its successors and assigns.

1. The fee ownership interest in the areas shown on the CSM as **Dedicated Public Street** are hereby dedicated, given, granted and conveyed by the Owner to the public for street purposes and related public purposes and for other purposes in the sole discretion of the Village.

2. A perpetual easement interest in each area shown on the CSM as **Dedicated Private Stormwater Easement** is hereby dedicated, given, granted, reserved and conveyed by the Owner to the Village for stormwater management purposes. The Owner shall record a Stormwater Maintenance Agreement pursuant to Section 289-9 of the Village Code of Ordinances for all Dedicated Private Stormwater Easement Areas.

3. A perpetual easement interest in each area shown on the CSM as **Dedicated Public Utility Easement** is hereby dedicated, given, granted, reserved and conveyed by the Owner to the Village for public and private utility, stormwater management, and telecommunications purposes and for all related construction, installation, repair, alteration, replacement, landscaping, maintenance, and ingress and egress.

4. The Owner hereby covenants that the Owner and Lot Owners shall not dedicate or convey an easement to any party in any part of the area of an easement dedicated to the Village pursuant to this CSM without approval by the Village.

5. The Owner hereby covenants that use by a Lot Owner of an easement area dedicated to the Village pursuant to this CSM shall not interfere with the Village's rights under the easement dedicated to the Village, that a Lot Owner may not alter the grade elevation of any part of an easement area dedicated to the Village, and that no structure, fence, landscaping, trees or other obstruction to the free and full access of each easement area by the Village shall be installed, constructed, or maintained by a Lot Owner unless approved in writing by the Village. If the Village approves of any structure, fence, landscaping, or other obstruction in an easement area the Village shall not be responsible for any damage to or replacement of same.

6. The Owner hereby covenants that each Lot Owner shall have the obligation, at the Lot Owner's cost, of maintaining each easement area dedicated to the Village pursuant to the CSM in a functional, neat, and nuisance-free condition, including mowing and the removal of trash, debris, leaves, and brush.

7. The Owner hereby covenants that, to the extent applicable to a particular easement area dedicated to the Village pursuant to the CSM, each Lot Owner, at the Lot

Owner's cost, shall maintaining erosion control methods to protect any present drainageways, shall perform ditching, dredging, or cleaning to re-establish stormwater management design capacities, shall clean, repair and replace any private inlets, private outlets, private piping, private manholes and private catch basin structures, and shall perform any other maintenance required to prevent nuisance conditions.

8. The Owner hereby covenants for the Owner and the Lot Owners that areas within the property described in the CSM that are wetlands subject to Village, state and/or federal wetlands requirements and areas that are subject to floodplain zoning regulations under federal, state, or Village laws and ordinances, will be managed consistent with these wetland and floodplain requirements and be preserved, protected, and maintained in functional, neat, and nuisance-free condition.

9. The Village shall have the right, but not the obligation, to perform any obligations of a Lot Owner under the dedications and covenants herein, if the Lot Owner fails to comply with these obligations, and the Lot Owner shall be liable for any costs which may be incurred by the Village. The Village may recover such costs from such Lot Owner as special assessments or special charges under Section 66.0627 (or successors or similar provisions) of the Wisconsin Statutes or otherwise according to law.